

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. f/k/a/ BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**RESPONDENTS' MOTION TO FILE UNDER SEAL RESPONDENTS' MOTION TO
STRIKE THE VERIFICATION OF DAVID KASTIN AND DISMISS THE COMPLAINT**

Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (“Respondents” or “OOCL”) respectfully move for an order permitting Respondents to file an unredacted copy of the Motion to Strike the Verification of David Kastin and Dismiss the Complaint, along with the exhibits thereto, under seal with the Presiding Officer and to file a redacted copy of the motion on the public docket.

The Presiding Officer issued a Protective Order governing discovery in this case on July 28, 2023. Pursuant to that order, Respondents seek leave to file the Motion to Strike the Verification of David Kastin and Dismiss the Complaint under seal and to file a redacted copy for the public docket.

DATED: December 9, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that on the 9th day of December 2024, a true and correct copy of the foregoing **Motion to File Under Seal** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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